

her behalf for the purpose of executing any deed or doing any other act which she might herself execute or do (*e*)].

14. **Infant cannot be guilty of a breach of trust.** — Another objection to an infant trustee is, that he cannot be decreed to make satisfaction on the ground of a breach of trust (*f*). However, an infant has no privilege to cheat men (*g*), and therefore he will not be protected, if he be old and cunning enough to contrive a fraud (*h*).

**Consequent presumption that he takes not as trustee, but beneficially.** — From the great inconveniences attending the appointment of an infant as trustee, there arises a [\*40] strong presumption wherever \*property is given to an infant, that he is intended to take it *not as trustee*, but *beneficially* (*a*).

15. **Alien formerly trustee of chattels personal only.** — An *alien* until a recent act (*b*) could not effectually be a trustee in respect of freeholders or chattels real, for the policy of the law would not allow an alien to sue or be sued to the prejudice of the Crown touching lands in any court of law or equity (*c*); and on inquisition found, the legal estate of the property vested by forfeiture in the Crown.<sup>1</sup>

[(*e*) 44 & 45 Vict. c. 41, s. 40.]

(*f*) See *Whitmore v. Weld*, 1 Vern. 328; *Russell's case*, 5 Rep. 27, a; *Hindmarsh v. Southgate*, 3 Russ. 324.

(*g*) *Evroy v. Nicholas*, 2 Eq. Ca. Ab. 489, *per* Lord King.

(*h*) See *Cory v. Gertcken*, 2 Mad. 40; *Evroy v. Nicholas*, 2 Eq. Ca. Ab. 488; *Earl of Buckingham v. Drury*, 2 Ed. 71, 72; *Clare v. Earl of Bedford*, 13 Vin. 536; *Watts v. Cresswell*, 9 Vin. 415; *Beckett v. Cordley*, 1 B. C. C. 358; *Savage v. Foster*, 9 Mod. 37; *Overton v. Banister*, 3 Hare. 503; *Stikeman v. Dawson*, 1 De G. & Sm.

503; *Wright v. Snowe*, 2 De G. & Sm. 321; *Davies v. Hodgson*, 25 Beav. 177; *Re Constantinople & Alexandra Hotel Co.*, *Ebbett's case*, 18 W. R. 202; 21 L. T. N. S. 574; [*Lemprière v. Lange*, 12 Ch. D. 675.]

(*a*) *Lamplugh v. Lamplugh*, 1 P. W. 112; *Blinkhorne v. Feast*, 2 Ves. sen. 30; *Mumma v. Mumma*, 2 Vern. 19; *Taylor v. Taylor*, 1 Atk. 386; *Smith v. King*, 16 East, 283; and see *King v. Denison*, 1 V. & B. 278.

(*b*) 33 Vict. c. 14.

(*c*) *Gilb. on Uses*, 43; and see *Fish v. Klein*, 2 Mer. 431.

<sup>1</sup> *Foss v. Crisp*, 20 Pick. 121; *Trimbles v. Harrison*, 1 B. Mon. 140; *Smith v. Zaner*, 4 Ala. 99; *Waugh v. Riley*, 8 Met. 290; *Dunlop v. Hepburn*, 3 Wheat. 231; *Montgomery v. Dorion*, 7 N. H. 475; *Hughes v. Edwards*, 9 Wheat. 489; *Ferguson v. Franklins*, 6 Munf. 305. A devise to an alien vests title. *Stephen v. Swann*, 9 Leigh. 404; *Vaux v. Nesbit*, 1 McC. Ch. 352. Will not vest title. *Atkins v. Kron*, 2 Ired. Ch. 58; *Craig v. Radford*, 3 Wheat. 594. Even an alien enemy may be a trustee. *Buford v. Speed*, 11 Bush. 338.